

DIGITAL GOVERNANCE CAUCUS • 2026 SESSION

The session's four calls.

Four measures reach the floor this week — here is where the caucus should stand on each, and the exact move to make.

ADOPT

Adopt a 30-day deadline for breach notification.

Consumers now learn of a breach 78 days late on average — long after the harm compounds.

Faster notice cuts identity-theft losses

States with a 30-day rule saw 22% lower per-victim costs [FTC 2025](#) .

The window is already industry practice

14 of the top 20 data processors notify within 30 days [IAPP survey](#) .

Enforcement is self-funding

Penalties capitalize the oversight office; no new appropriation [LBB fiscal note](#) .

THE ASK

Vote YES on HB 214 § 3 — or sponsor the floor amendment adding the 30-day deadline.

Amend SB 88 to require bias audits before deployment, not after.

Post-hoc audits catch discrimination only once applicants have already been screened out.

Pre-deployment testing is the only preventive control

Audits after launch cannot un-reject the candidates already filtered [EEOC 2025](#).

The change is narrow and drafted

It moves one clause from § 4(b) to § 3; no new agency [Leg. counsel memo](#).

Vendors can meet it today

Three of five major ATS vendors already ship pre-deployment reports [vendor survey](#).

THE ASK

Move the § 4(b) audit trigger to § 3 in the committee substitute before markup.

OPPOSE

Oppose AB 402’s mandated key-escrow provision.

A state-held decryption key is a single point of failure for every resident's data.

It weakens security for everyone

A mandated backdoor is exploitable by any attacker who finds it **NIST**.

It won't stop determined actors

Open-source encryption stays available outside the state's reach **EFF**.

THE ASK

Vote NO on AB 402, or strike the § 5 escrow mandate in committee.

DEFER

Defer HR 19 pending an independent accuracy study.

Error rates for the proposed system are unpublished for the populations it would scan.

The evidence base is missing

No demographic accuracy audit exists for this vendor GAO request.

A study is already funded

The oversight office can report within one session fiscal note.

THE ASK

Refer HR 19 to interim study; revisit with the audit in hand.

REP. ANA OKAFOR · CHAIR · GOVERNANCE@STATEHOUSE.EXAMPLE

Two ayes, one no, one
to study — the caucus
speaks with one voice.